

CLIENT PAPER – FOR NEGOTIATION

Professional Services Agreement

Contract No. _____

by and between

BrightLoop Inc.

("Client")

and

("Consultant")Effective Date: **July 2026**Project: *PulseTask – Todo List Web & Mobile Application*

This document is an initial draft prepared by BrightLoop Inc. for the purpose of commercial negotiation. It does not constitute an offer capable of acceptance and is subject to revision. Privileged and confidential.

THIS AGREEMENT is made and entered into this ____ day of _____, 2026, by and between **BRIGHTLOOP INC.**, hereinafter called **CLIENT**, and _____, hereinafter called **CONSULTANT**, for the design, development, and delivery of **PulseTask**, a todo-list web and mobile application (the "**Project**").

1. DUTIES

A. CONSULTANT agrees to exercise special skill to accomplish the following results in a manner satisfactory to CLIENT: design, build, test, and deliver a fully functioning todo-list application, including user account management, task creation/editing/completion, list organization, reminders/notifications, and a web and mobile front end, as specified in **Exhibit A: Scope of Services**, which by this reference is incorporated herein. CONSULTANT warrants that the scope described in Exhibit A is fully achievable, without qualification, within the fee and schedule set out in this Agreement, and any failure to deliver the complete scope within such fee and schedule shall be deemed a default by CONSULTANT regardless of cause, except as expressly limited by Section 4.

B. CONSULTANT shall provide the personnel listed below, designated as key personnel under this Agreement:

Name	Firm	Function
		Principal in Charge
		Project Manager / Lead Developer

C. No person named above, nor any successor, shall be removed or replaced by CONSULTANT, nor shall his or her function be changed, without CLIENT's prior written consent, which CLIENT may withhold in its sole and absolute discretion. Any unauthorized removal or replacement of key personnel shall constitute a material breach entitling CLIENT to terminate this Agreement immediately for default under Section 4.B, without a cure period.

D. CONSULTANT shall submit written progress reports with each invoice, in a format acceptable to CLIENT, sufficiently detailed for CLIENT to assess whether CONSULTANT is on schedule, and shall make its Project Manager available to meet with CLIENT's Contract Manager as frequently as CLIENT may request, including on less than 24 hours' notice for urgent matters.

2. COMPENSATION

A. Total payment shall not exceed **\$28,000** (the "**Contract Price**"), a firm fixed price covering the entire Scope of Services in Exhibit A, at the milestones and conditions set forth in **Exhibit B: Fee Schedule**, which

by this reference is incorporated herein. The Contract Price is inclusive of all labor, materials, tools, third-party services, and overhead of any kind; no additional amount shall be payable to CONSULTANT for any reason, including underestimation of effort, except pursuant to a written Change Order signed by CLIENT in its sole discretion.

B. CONSULTANT shall not be reimbursed for any overhead, markup, or administrative cost of any kind, whether or not disclosed in Exhibit B.

C. No travel, subsistence, or incidental expense of any kind shall be reimbursed by CLIENT under any circumstance.

D. Payments shall be made only upon CLIENT's written acceptance of the applicable milestone deliverable under Section 10; no progress payment shall be due based on time elapsed or effort expended absent such written acceptance.

E. If CONSULTANT fails to submit any deliverable according to the schedule in Exhibit A, CLIENT may, in its sole discretion, withhold all payment (including for milestones already completed but not yet paid), impose the delay damages described in Section 2.G, and/or terminate this Agreement under Section 4.

F. No payment shall be made prior to CLIENT's written approval of the applicable work, nor for any work performed prior to full execution of this Agreement by both parties and CLIENT's governing authority, where applicable.

G. Liquidated Delay Charge. If CONSULTANT fails to deliver any milestone identified in Exhibit B by its scheduled delivery date, CONSULTANT shall pay CLIENT, as liquidated damages and not as a penalty, the sum of **\$250 per calendar day** of delay for each day beyond the scheduled date until the milestone is delivered and accepted, which amount CLIENT may deduct from any payment otherwise due to CONSULTANT or invoice directly to CONSULTANT.

H. CONSULTANT shall not exceed any milestone cost estimate shown in Exhibit B under any circumstance without CLIENT's prior written approval, which CLIENT may withhold in its sole discretion.

I. Invoices shall be submitted no later than **15 calendar days** after CLIENT's written acceptance of the applicable milestone, and shall include an itemized breakdown of labor and deliverables. CLIENT shall pay undisputed invoices within **60 days** of receipt. CLIENT may withhold payment of any invoice, in whole or in part, that it disputes in good faith, without interest or penalty accruing during the pendency of such dispute, however long it continues.

3. TERM

This Agreement shall take effect on the Effective Date and, subject to Section 4, shall end upon Final Acceptance of all deliverables under Section 10, anticipated to occur no later than **ten (10) weeks** following the Effective Date. Time is of the essence. CONSULTANT is advised that this Agreement is not binding until fully executed by both parties.

4. EARLY TERMINATION

A. CLIENT may terminate this Agreement for its convenience at any time, in whole or in part, upon **five (5) days'** written notice. Upon such termination, CLIENT shall pay CONSULTANT solely for milestones fully completed and accepted in writing prior to the effective date of termination, less any amounts owed to CLIENT under Section 2.G or Section 5. CONSULTANT shall have no claim for anticipated profit, work in progress, or any milestone not yet accepted.

B. CLIENT may terminate this Agreement immediately for CONSULTANT's default if CONSULTANT breaches any term of this Agreement and fails to cure such breach within **five (5) days** after written notice, or immediately and without any cure period for breach of Section 1.C, Section 9, or Section 11. CONSULTANT shall be liable for any and all costs incurred by CLIENT as a result of such default, including the full cost of re-procuring the same or similar services from a replacement provider, without any cap or limitation.

C. CONSULTANT may terminate this Agreement only by giving CLIENT at least **ninety (90) days'** advance written notice, and only if CLIENT is more than ninety (90) days delinquent on an undisputed payment obligation exceeding \$10,000. CONSULTANT shall remain liable for CLIENT's re-procurement costs arising from any termination by CONSULTANT under this Section 4.C.

5. INDEMNIFICATION

CONSULTANT shall exonerate, indemnify, defend, and hold harmless CLIENT (which for purposes of this Agreement includes its officers, directors, employees, contractors, and affiliates) from and against any and all claims, demands, losses, damages, liabilities, fines, penalties, defense costs (including reasonable attorneys' fees), or other liability of any kind or nature, whether arising in contract, tort, strict liability, or otherwise, arising out of, pertaining to, or in any way related to: (i) CONSULTANT's performance or non-performance of this Agreement, regardless of degree of fault; (ii) any actual or alleged infringement of a third party's intellectual property rights by any deliverable, tool, or component provided by CONSULTANT; (iii) any breach of Section 9 (Work Product) or Section 11 (Confidentiality); and (iv) any claim by a CONSULTANT employee, contractor, or subcontractor arising from CONSULTANT's engagement on the Project. This indemnification obligation is not limited by, and shall survive, any insurance maintained by CONSULTANT and is not subject to any cap on liability, notice requirement, or right of CONSULTANT to control the defense; CLIENT may control its own defense, at CONSULTANT's expense, using counsel of CLIENT's choosing. CONSULTANT shall further be responsible for any and all federal, state, and local taxes, charges, fees, or contributions required to be paid with respect to CONSULTANT and its personnel engaged in performance of this Agreement.

6. INSURANCE

CONSULTANT, at its sole cost, shall obtain and maintain for the full term of this Agreement and for **three (3) years** thereafter: (i) Commercial General Liability Insurance of not less than \$2,000,000 combined single limit per occurrence, naming CLIENT as an additional insured; (ii) Professional Liability (Errors & Omissions) Insurance of not less than \$2,000,000 per claim, covering the Services described herein; and (iii) Cyber Liability Insurance of not less than \$1,000,000 per claim. Such insurance shall be primary to, and shall not contribute with, any insurance maintained by CLIENT. CONSULTANT shall provide Certificates of Insurance to CLIENT prior to the Effective Date and shall ensure each policy is endorsed to require thirty (30) days' prior written notice to CLIENT before cancellation or material reduction of coverage. CONSULTANT's failure to maintain the insurance required by this Section at all times shall entitle CLIENT to terminate this Agreement immediately for default under Section 4.B.

7. LAWS, LICENSES AND INDEPENDENT CONTRACTOR STATUS

A. CONSULTANT warrants strict compliance with all applicable federal, state, and local laws in the performance of this Agreement, and shall promptly notify CLIENT of any conflict between applicable laws affecting the Project.

B. If any license is required of CONSULTANT or its personnel, CONSULTANT warrants such license is, and shall remain, valid and in good standing throughout the term of this Agreement.

C. CONSULTANT is an independent contractor and not an employee of CLIENT. CONSULTANT is solely responsible for all insurance, payroll taxes, and benefits for its personnel, and CLIENT shall have the right, notwithstanding CONSULTANT's status as an independent contractor, to specify the manner, method, and detail of the Services to the extent CLIENT deems necessary to ensure conformity with Exhibit A.

8. RECORDS, AUDIT AND INSPECTION

CONSULTANT shall maintain all books, records, and materials pertaining to performance of this Agreement, and shall make such materials available to CLIENT at CONSULTANT's offices at all reasonable times, including on 24 hours' notice, during the term of this Agreement and for **five (5) years** thereafter. CLIENT may inspect and review Project activities, files, code repositories, and work-in-progress at any time, including daily, without prior notice.

9. WORK PRODUCT AND INTELLECTUAL PROPERTY

A. All material, data, source code, object code, designs, documentation, and other work of any kind produced, conceived, or developed by CONSULTANT under or in connection with this Agreement (collectively, the "**Deliverables**") is, and shall automatically and irrevocably be, the sole and exclusive property of CLIENT upon creation, without further act or agreement, and shall be deemed a work made for hire. To the extent any Deliverable is not deemed a work made for hire, CONSULTANT hereby irrevocably assigns to CLIENT all right, title, and interest, including all worldwide intellectual property rights, in and to such Deliverable,

effective upon creation and without additional consideration.

B. This assignment extends to and includes any pre-existing tool, framework, code library, or other material owned or developed by CONSULTANT prior to this Agreement, to the extent incorporated into or used in connection with any Deliverable, together with any modification or improvement made to such pre-existing material during the term of this Agreement, all of which shall likewise be assigned to and owned exclusively by CLIENT. CONSULTANT shall identify any such pre-existing material it intends to exclude from this assignment in writing prior to first use; absent such written identification, all such material is deemed assigned to CLIENT.

C. CONSULTANT shall not use the Deliverables, or any part thereof, for any purpose other than performance of this Agreement, and shall not sell, license, sublicense, or grant any right in the Deliverables to any third party, nor use them in any profit-making venture on CONSULTANT's own behalf.

D. CONSULTANT shall not incorporate any open-source or third-party component into any Deliverable without CLIENT's prior written approval, and shall not, under any circumstance, incorporate any component licensed under the GPL, LGPL, AGPL, or any similar copyleft license.

E. CONSULTANT warrants that no third party, including any CONSULTANT employee, contractor, or sub-contractor, holds or will hold any claim of ownership in the Deliverables.

10. CONFIDENTIALITY

All information disclosed by CLIENT to CONSULTANT, and all information regarding the Project, the Deliverables, and CLIENT's business, is confidential and shall not be used by CONSULTANT for any purpose other than performance of this Agreement, nor disclosed to any third party, without CLIENT's prior written consent, which CLIENT may withhold in its sole discretion. This obligation shall survive termination or expiration of this Agreement for **five (5) years**, or indefinitely as to any trade secret. CONSULTANT shall not issue any press release, case study, portfolio reference, or public statement regarding the Project without CLIENT's prior written approval.

11. ACCEPTANCE

A. Upon completion of each milestone in Exhibit B, CONSULTANT shall deliver written notice to CLIENT. CLIENT shall have **ten (10) business days** to review the deliverable and either accept it in writing or reject it with a written list of deficiencies. There shall be no deemed acceptance under any circumstance.

B. If CLIENT rejects a milestone, CONSULTANT shall correct all identified deficiencies within **five (5) business days**, at no additional cost, and resubmit for a further ten (10) business day review. This cycle shall repeat until CLIENT accepts the milestone in writing, without any extension of the overall schedule under Section 3 and without any additional fee.

C. Acceptance of any milestone, or of the final Deliverable, shall be within CLIENT's sole and reasonable discretion based on conformity with Exhibit A.

12. MODIFICATION OF AGREEMENT

This Agreement may be amended only by mutual written agreement signed by both parties. CONSULTANT shall not commence any work covered by a proposed amendment until it is fully executed. No oral understanding not incorporated herein shall bind either party. There shall be no change in CONSULTANT's Project Manager or key personnel without CLIENT's prior written approval under Section 1.C.

13. DISPUTES; GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware. Pending resolution of any dispute, CONSULTANT shall proceed diligently with performance and shall comply with CLIENT's instructions. Neither the pendency of a dispute nor its consideration under this Section shall excuse CONSULTANT from full and timely performance. Any dispute not resolved by the parties' informal discussion within fifteen (15) days shall be subject to the exclusive jurisdiction of the state and federal courts located in Delaware, and CLIENT may, in addition, seek injunctive relief in any court of competent jurisdiction at any time to prevent irreparable harm arising from an actual or threatened breach of Section 9 or Section 11.

14. SUBCONTRACTING AND NONASSIGNMENT

CONSULTANT shall perform the Services with its own personnel and shall not subcontract any portion of the work without CLIENT's prior written authorization, which CLIENT may withhold in its sole discretion. CONSULTANT shall not assign this Agreement, in whole or in part, without CLIENT's prior written consent, which CLIENT may withhold in its sole discretion. CLIENT may assign this Agreement freely, including to any affiliate or successor, without CONSULTANT's consent.

15. NOTIFICATION

All notices shall be delivered by email with confirmation of receipt, and by certified mail, addressed as follows:

CONSULTANT:

Project Manager

CLIENT:

BrightLoop Inc.
Attn: Contract Manager

16. COMPLETE AGREEMENT

A. This Agreement, together with Exhibit A (Scope of Services) and Exhibit B (Fee Schedule), constitutes the entire agreement between the parties and supersedes all prior representations, understandings, and communications, whether written or oral. The invalidity of any provision shall not affect the validity of the remaining provisions. CLIENT's waiver of any breach shall not be deemed a waiver of any future breach.

B. Each undersigned individual represents that he or she is duly authorized to execute this Agreement on behalf of the party for whom he or she signs.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed on the date first written above.

1. CONSULTANT

By: _____
Signed

Printed

Company Name: _____

Address: _____

Email: _____

2. BRIGHTLOOP INC.

By: _____
Signed

Printed

Title: _____

Date: _____

3. APPROVED AS TO INSURANCE: _____ **4. APPROVED AS TO FORM:**

EXHIBIT A – SCOPE OF SERVICES

A.1 Overview

CONSULTANT shall design, develop, test, and deliver PulseTask, a todo-list application consisting of a responsive web application and a companion mobile application (iOS and Android), together with all source code, documentation, and deployment configuration necessary for CLIENT to operate the application without further assistance from CONSULTANT.

A.2 Functional Requirements

- User registration, authentication, and profile management
- Creation, editing, completion, and deletion of tasks
- Organization of tasks into lists/categories, with due dates and priority levels
- Reminder and notification functionality (push notification and email)
- Basic sharing of lists between registered users
- Search and filter functionality across tasks and lists
- Responsive web application (desktop and mobile browser)
- Native-equivalent mobile applications for iOS and Android
- Cloud-hosted backend with a documented API layer
- Deployment to production infrastructure designated by CLIENT

A.3 Non-Functional Requirements

- Page/screen load time of under 2 seconds under normal conditions
- Support for at least 200 concurrent users without material degradation
- Industry-standard authentication and session security
- Full technical and deployment documentation delivered with the final milestone

A.4 Deliverables

- A. Finalized functional specification and UI wireframes
- B. Complete backend API and database implementation
- C. Complete web application, deployed to staging
- D. Complete mobile applications (iOS and Android), deployed to staging
- E. Final production deployment, source code, and documentation

EXHIBIT B – FEE SCHEDULE**B.1 Fixed Price and Milestone Schedule**

Total Contract Price: **\$28,000**, payable solely upon CLIENT's written acceptance of each milestone below. Time is of the essence; the Liquidated Delay Charge in Section 2.G applies to each milestone independently.

#	Milestone	Due (from Effective Date)	Fee	Review Period
1	Functional specification and UI wireframes approved	Week 1	\$3,000	10 bus. days
2	Backend API and database implementation	Weeks 2–4	\$7,000	10 bus. days
3	Web application, deployed to staging	Weeks 4–7	\$8,000	10 bus. days
4	Mobile applications (iOS & Android), deployed to staging	Weeks 6–9	\$7,000	10 bus. days
5	Production go-live, source code, and documentation delivered	Week 10	\$3,000	10 bus. days
Total			\$28,000	

B.2 Payment Conditions

No amount shall become due for any milestone until CLIENT has issued written acceptance under Section 10 of the Agreement. Amounts withheld under Section 2.E or Section 2.G of the Agreement shall be deducted from the next scheduled milestone payment, and if insufficient, invoiced directly to CONSULTANT, payable within fifteen (15) days.